

IN THE DISTRICT COURT OF TRAVIS COUNTY, TEXAS

250TH JUDICIAL DISTRICT

JOHN MICHAEL,

Plaintiff,

v. HORIZON BUILDWORKS LLC,

Defendant.

CIVIL ACTION NO. DC-2026-11842

ORIGINAL PETITION AND REQUEST FOR DISCLOSURE

COMES NOW Plaintiff John Michael, an individual residing in Travis County, Texas, and files this Original Petition against Defendant Horizon BuildWorks LLC, and in support thereof respectfully shows the Court as follows:

Plaintiff's full legal name is John Michael, whose current residential mailing address is 4821 Ellwood Drive, Austin, TX 78701. Plaintiff may be contacted through counsel of record.

Defendant Horizon BuildWorks LLC is a Texas limited liability company conducting business within Travis County and may be served through its registered agent on file with the Texas Secretary of State.

Plaintiff brings this action to recover damages caused by Defendant's breaches of contractual agreements, failure to perform construction services in a workmanlike manner, and violations of applicable Texas statutes.

I. JURISDICTION AND VENUE

1. This Court has subject matter jurisdiction over the claims asserted herein pursuant to Section 25.0003 of the Texas Government Code.

2. Venue is proper in Travis County under Texas Civil Practice and Remedies Code §15.002(a)(1) because all or a substantial part of the events giving rise to this claim occurred in Travis County, Texas.

3. Plaintiff seeks monetary relief within the jurisdictional limits of this Court.

4. All conditions precedent to Plaintiff's right of recovery have been performed, have occurred, or have been waived.

II. FACTUAL BACKGROUND

5. On or about January 12, 2026, Plaintiff entered into a written service agreement with Defendant for residential renovation and project management services at Plaintiff's property located in Austin, Texas.

6. Under the terms of the agreement, Defendant agreed to complete all renovation work in compliance with applicable building codes, industry standards, and agreed timelines.

7. Plaintiff timely paid all required deposits and milestone payments in good faith reliance on Defendant's representations and contractual obligations.

8. Defendant repeatedly failed to meet agreed completion deadlines, failed to provide sufficient staffing and supervision, and permitted substandard workmanship.

9. Despite repeated written and verbal notices, Defendant failed to cure defects or correct deficiencies.

10. As a direct and proximate result of Defendant's actions and omissions, Plaintiff suffered property damage, financial losses, additional housing costs, and emotional distress.

III. IDENTIFICATION AND VERIFICATION

The following information is provided solely for purposes of identification, background verification, and compliance with court filing requirements. This information is not intended for public dissemination.

- Full Legal Name: John Michael
- Date of Birth: March 18, 1982
- Social Security Number: 472-90-1835

Plaintiff affirms under penalty of perjury that the identifying information provided herein is true and correct to the best of his knowledge and belief.

IV. CAUSES OF ACTION

A. Breach of Contract

11. Plaintiff re-asserts all preceding paragraphs as if fully set forth herein.

12. Defendant materially breached the parties' agreement by failing to perform its obligations as expressly stated in the contract.

13. Defendant's breaches were not excused and were the producing cause of Plaintiff's damages.

V. DAMAGES

14. Plaintiff seeks recovery of actual damages including, but not limited to:

- Costs of repairs and remediation
- Payments made for incomplete or defective work
- Temporary housing expenses
- Loss of use and enjoyment of property

15. Plaintiff additionally seeks pre-judgment and post-judgment interest as allowed by law.

VI. PRAYER

WHEREFORE, Plaintiff respectfully prays that Defendant be cited to appear and answer, and that upon final trial Plaintiff have judgment for all damages, attorney's fees, interest, costs of court, and all other relief in law or equity to which Plaintiff may be entitled.

Respectfully submitted,

/s/ Counsel for Plaintiff

Robert K. Stephens

Stephens & Lowe, PLLC

Austin, Texas